



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00004 / 521 Southwest Drive Annexation
Date: February 14, 2022

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 2/14/2022
- Public Services Committee 2/23/2022
- Second reading 2/28/2022
- Public Services Committee 3/8/2022
- Third and final reading 3/14/2022

Related Items:

- 521 Southwest Drive Zone Change (UDC-22-00004-01)

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED EAST OF SOUTHWEST DRIVE, SOUTH OF I-80."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

(a) That Tru-Grit Land Development, LLC, owners of:

a portion of Tract 1, H & B Tracts, Laramie County, Wyoming, more particularly described as follows:

beginning at a point being the northeast corner of said Tract 1, monumented with a 3" brass cap WYDOT right-of-way marker; thence S.03 deg 38' 03" W., along the east line of said Tract 1, a distance of 483.00 feet; thence S.80 deg 21' 10" W., a distance of 1533.88 feet; thence N.00 deg 06' 34" E., a distance of 37.81 feet; thence S.79 deg 29' 47" W., a distance of 444.72 feet to a point on the west line of said Tract 1, monumented with a survey cap stamped "DMH PE & LS 558"; thence N.14 deg 33' 35" E., along said west line, a distance of 464.54' to the northwest corner of said Tract 1, monumented with a 3" brass cap WYDOT right-of-way marker; thence N.73 deg 12' 59" E, along the north line of said Tract 1, a distance of 334.52' to a 3" brass cap WYDOT right-of-way marker; thence continuing along said north line, along a curve, concave to the southeast, with a radius of 5455.39 feet, curve delta 16 deg 27' 00", arc length of 1566.28' and chord bearing of N.81 deg 17' 58" E., a distance of 1560.91' to the POB.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Cotton D. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 3333; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other

services customarily available in the City of Cheyenne can, within reason, be furnished; and

- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MU Mixed Use by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____



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CITY OF CHEYENNE GOVERNING BODY FEBRUARY 14, 2022 STAFF REPORT

FILE: UDC-22-00004: Annexation of 521 Southwest Drive

REQUEST: An annexation of 48.6 acres of land

LOCATION: East of Southwest Drive, south of I-80

APPLICANT: Steil Surveying Services, LLC – Casey Palma

AGENT: Steil Surveying Services, LLC – Casey Palma

OWNER: Tru Grit Land Development LLC

PURPOSE: To allow future development

PREPARED BY: Seth Lloyd, Planner II – Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing of 48.6 acres of land for future development – most likely residential. The County Assessor presently shows the tract of land as a portion of a platted lot, one ownership parcel. The land is currently developed in the County with one single-family home. A zone change is proposed concurrently with this annexation. Both applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County MU Mixed Use to the City AG Agricultural zone. The purpose of this annexation is to allow future urban development under the City's jurisdiction. A future zone change and platting action is anticipated to create urban development patterns.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Residential	County MU	Rural Residential
North	Mixed-use Residential	LI	Undeveloped
South	Mixed-use Residential	AR, MUB, LI	Undeveloped, Low-density Residential
East	Mixed-use Employment	LI	Undeveloped, Limited Industrial
West	Open Space, Mixed-use Residential, Public and Quasai-public	PUD, LI, AR	Undeveloped, Animal Shelter, Low-density Residential

The property is currently zoned MU Mixed Use in the County. The property is concurrently proposed to be annexed and rezoned to the City AG Agricultural zone. The City AG zone is intended for low-intensity operations, including agriculture, and is appropriate as a 'holding zone' until such time urban development patterns are finalized. Future development is anticipated to be largely residential with possibly a mix of commercial uses (according to the comprehensive plan designation for the area).

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

- 1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]**

The annexation of this property will increase the health, safety, and welfare of the occupants of future development once it is built. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property, if occupied, will also be required to be connected to City sanitary sewer instead of having septic systems.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. For all intents, the property is surrounded by the City (the only non-annexed area is the railroad right-of-way). The contiguity on three sides and the proximity to surrounding urban-style development makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. City sewer lines exist in the vicinity and both water and sewer lines would likely be extended with the development of the property.

The application **complies** with this review criterion.

4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]

The area proposed for annexation is about 75.1% contiguous, along all but the eastern edge.

The application **complies** with this review criterion.

5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under

subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]

A certified mailing was made to the landowners and public utilities on January 14, 2022. The public hearing for this annexation is scheduled for February 14, 2022. Twenty (20) business days prior to the announced public hearing is January 14, 2022. The earliest confirmation of delivery was dated January 18, 2022.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Policies within PlanCheyenne encourage the maximization of existing infrastructure and the reduction of County pockets. This property is near existing urban infrastructure (although water lines would require significant extension), and the annexation would effectively eliminate a County pocket.

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with a mix of urban residential and lower-intensity commercial uses. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits.

STAFF REVIEW:

Through the review process, the following comments were received:

- New septic systems will not be allowed.
- Water and sewer are not immediately adjacent to this parcel and extensions will be needed with development.
- Annexation will require future development to comply with City-adopted regulations

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and most services typically available to urban areas are available to this property.

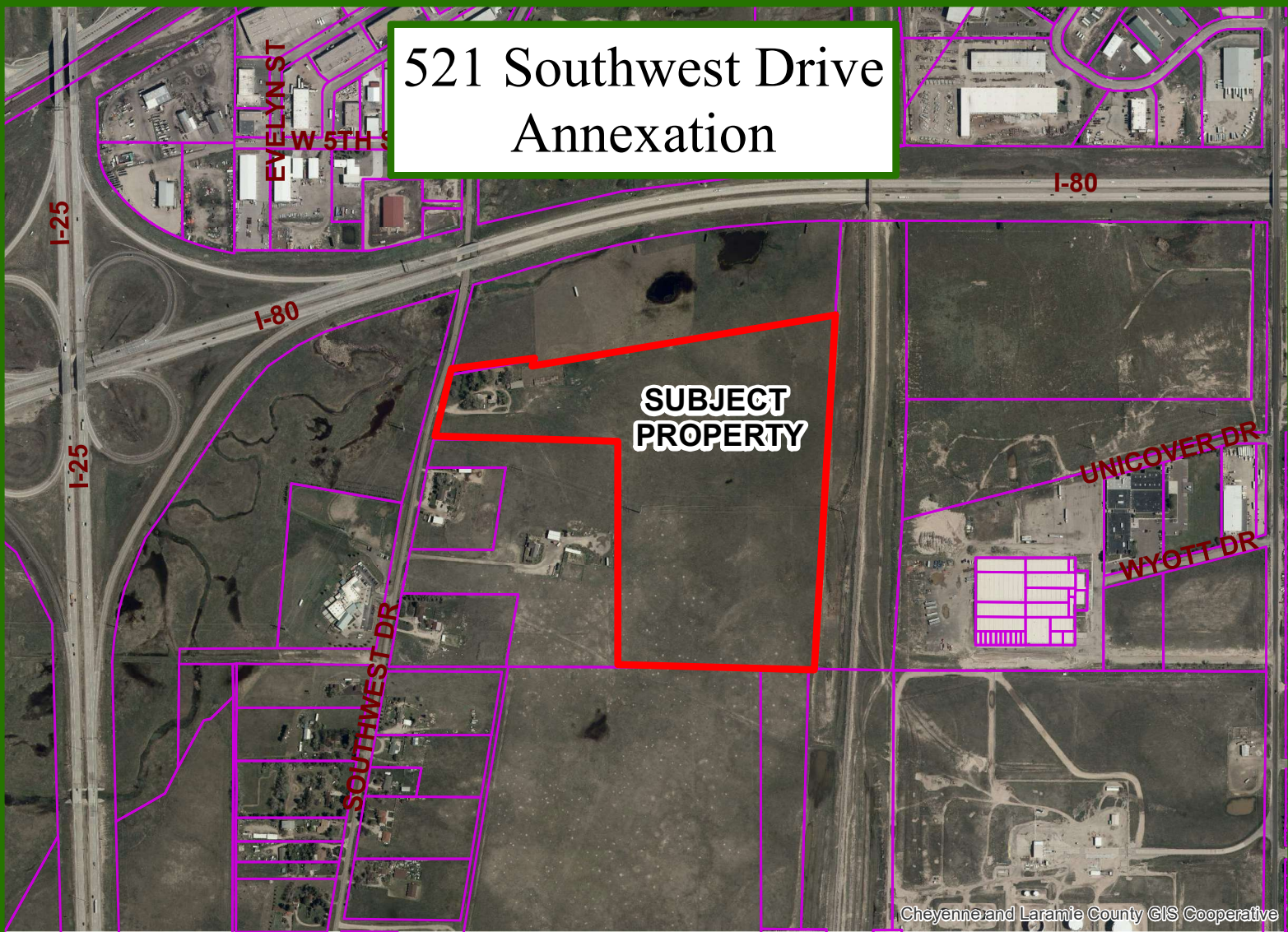
STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Aerial, Current City Limits, and Future Land Use Map
2. Submitted Application
3. Applicant-submitted annexation map
4. Supporting photos

521 Southwest Drive Annexation

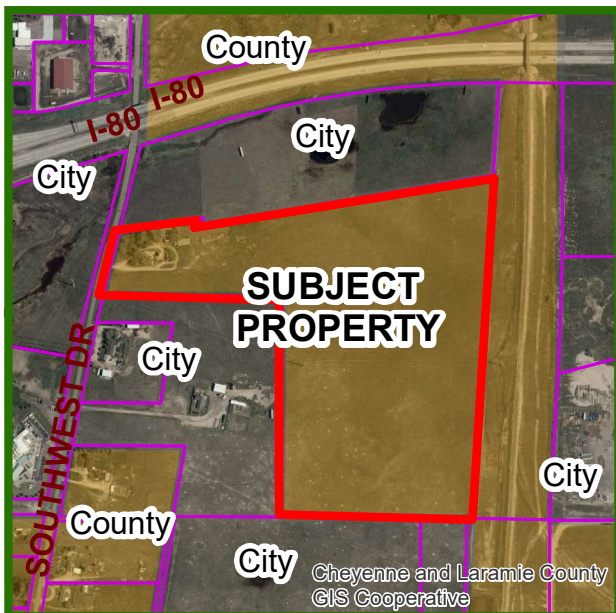


Application Number
Annexation
UDC-22-00004

Applicant: Shane Boyle -
Civilworx
Owner: Tru Grit
Land Development, LLC

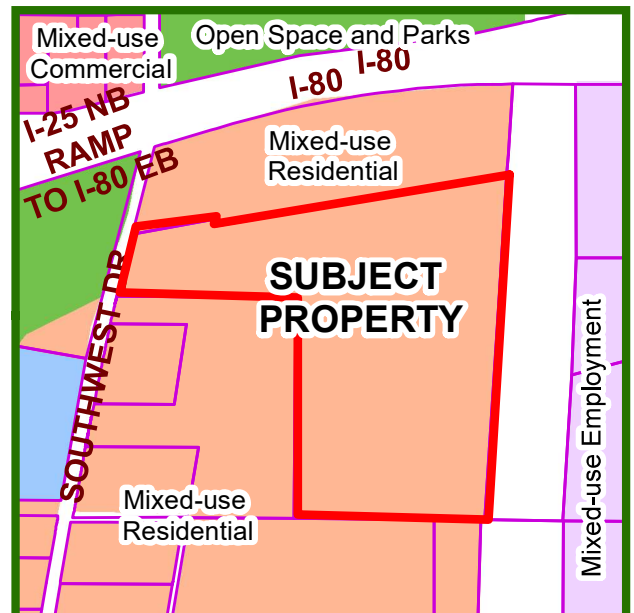
0 800 1,600
Feet
Scale applies to above map only

Current City Limits



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Annexation Application

Submission date: **4 January 2022, 4:27PM**
Receipt number: **15**
Related form version: **10**

General Information

Applicant Name: **Tru-Grit Land Development, Inc.**

Applicant Address: **140 Walterscheid Blvd**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82007**

Applicant Phone: **303-778-0400**

Applicant Email: **ernste@mhbwy.com**

Representative Name: **Shane Boyle**

Representative Address: **1807 Capitol Ave**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82007**

Representative Phone: **970-698-6046**

Representative Email: **shane.boyle@civilworxeng.com**

Owner Name: **Ed Ernste**

Owner Address: **140 Walterscheid Blvd**

Owner City: **Cheyenne**

Owner State:	WY
Owner Zip Code:	82007
Owner Phone:	303-778-0400
Owner Email:	ernste@mhbwy.com
Who is the primary contact regarding this application?	Applicant
Letter of Authorization	Letter of Authorization - Signed.pdf
Project Location (Street Address or General Location):	521 Southwest Drive
Assessor's Parcel ID number(s)	13671220400400
Total Project Area	48.59 acres / 2,116,580 SF
Current Zoning	MU
Proposed Zoning	AG - Agricultural

Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	See attached annexation petition for legal description.
Formal Annexation Petition	Annexation Petition - Signed.pdf
Board of Public Utilities Clearance Form	20220104_Stansbury Farm BOPU clearance form signed.pdf
Annexation Map	Stansbury Farms Annexation Zoning Map.pdf Stansbury Farms Annexation Map.pdf

Signature / Certification

Applicant Signature

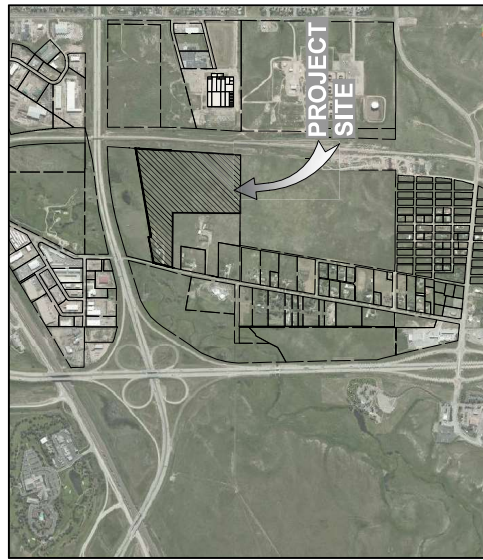
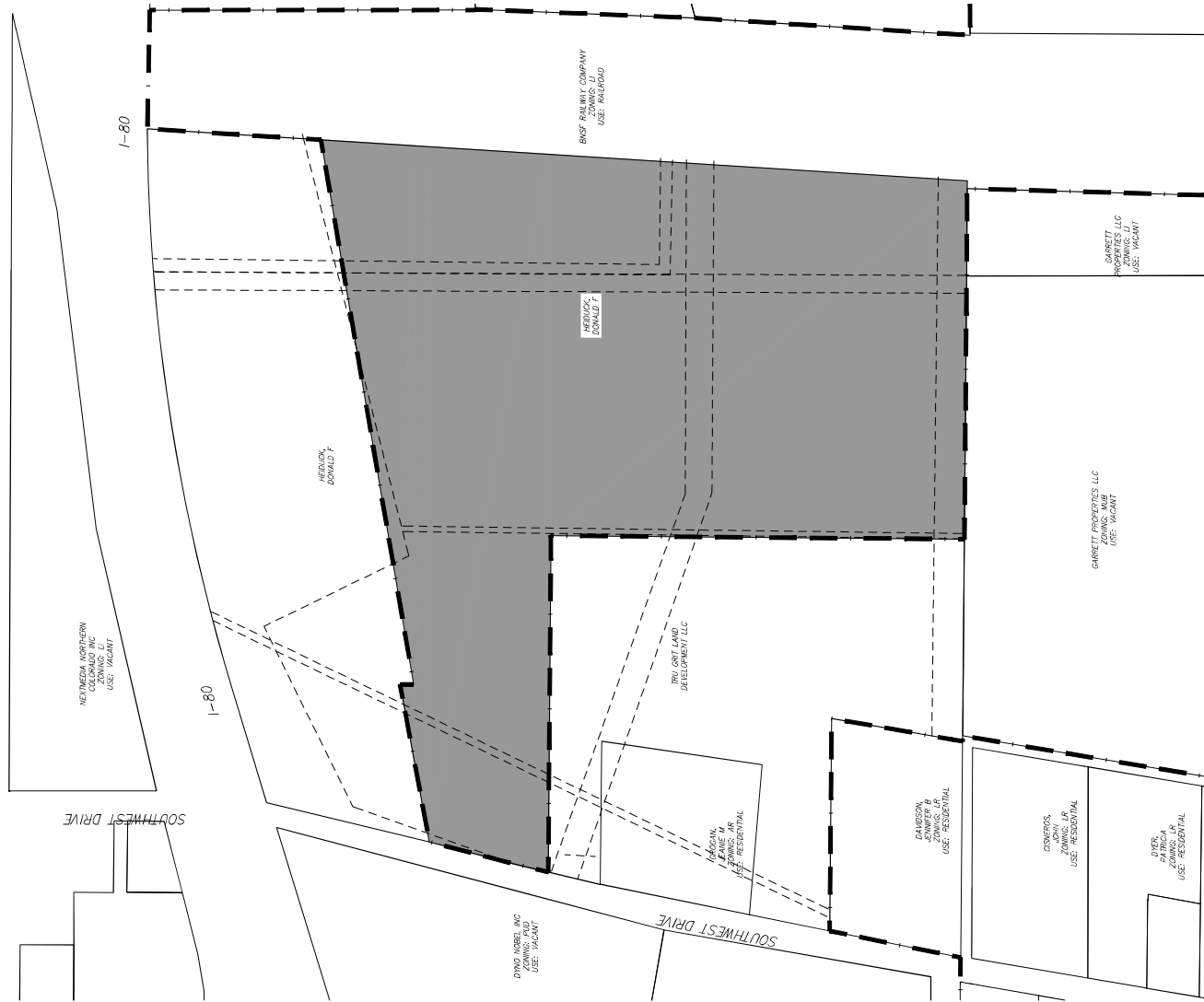
Name of signatory: Shane Boyle

A handwritten signature in blue ink, appearing to read 'Shane Boyle', is displayed within a white rectangular box.

[Uploaded signature image: shane signature BLUE.jpg](#)

Please enter an email address for an email receipt.

shane.boyle@civilworxeng.com



VICINITY MAP
SCALE: 1" = 1000'

LEGAL DESCRIPTION:

[illegible]

GENERAL NOTES:

1. DISTANCES SHOWN ON PLAT ARE GROUND DISTANCE.
2. THE AREA WITHIN THE HEAVY BOUNDARY IS CURRENTLY A COUNTY POCKET; ALL AREAS OUTSIDE THE BOUNDARY ARE WITHIN THE LIMITS OF THE CITY OF CHRYSTIAN.
3. THE LIMITS OF THE CITY OF CHRYSTIAN: NORTH - 5.436', WEST & SOUTH BOUNDARIES OF THE PARCEL.
4. RATIO OF THE BOUNDARY ABOUTING THE CITY LIMITS = 75.19% OF THE TOTAL.

APPROVALS:

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, WYOMING, THIS

DATE	2010
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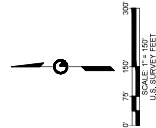
ATTEST: _____

 SECRETARY

SURVEYORS CERTIFICATE.

I, COTTON O. JONES, A REGISTERED PROFESSIONAL LAND SURVEYOR IN THE STATE OF WYOMING, HEREBY STATE, TO THE BEST OF MY KNOWLEDGE, INFORMATION AND BELIEF, THAT THIS ANNEXATION MAP WAS PREPARED FROM FIELD NOTES TAKES DURING AN ACTUAL SURVEY MADE BY ME OR UNDER MY DIRECT SUPERVISION, AND THAT THIS MAP CORRECTLY SHOWS THE RESULTS OF SAID SURVEY AND THAT THE MONUMENTS FOUND OR SET ARE AS SHOWN.

PROPOSED AREA FOR ANNEXATION



ANNEXATION MAP
FOR
STANSBURY FARMS

H AND B TRACTS, TRACT 1, EXCEPT (23.38 AC. 8K 2464 PG 641) A PORTION OF TRACT 1,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING

PREPARED DECEMBER 2021	SHEET 1 OF 1
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WILD
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